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SOFTWARE: REFA v. 1.0

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11. **Term and Termination.** The Agreement will remain in full force and effect for the period outlined in the Order Schedule ("**Term**") unless terminated by Berkeley Lab in accordance with this Agreement. If Licensee breaches any term of this Agreement, and fail to cure such breach within thirty (30) days of the date of written notice, this Agreement will immediately terminate. Upon such termination, Licensee will immediately: cease using the Software; return to Berkeley Lab or destroy, all copies of the Software; and provide Berkeley Lab with written certification of Licensee's compliance with the foregoing. Termination will not relieve Licensee from Licensee's obligations arising prior to such termination, including but not limited to the responsibility to pay previously accrued fees. Notwithstanding any provision to the contrary, Sections 1 and 3 through 17 will survive termination of this Agreement.

12. **Export Controls.** Licensee will observe all applicable United States and foreign (if any) export control laws and regulations, including, without limitation, the International Traffic in Arms Regulations (ITAR) and

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13. **Audit.** Licensee will maintain all necessary records to ensure compliance with this Agreement, including but not limited to, finance and accounting records as would be required by generally accepted accounting principles herein, and to retain such records for at least three (3) years after the expiration or termination of this Agreement. During the Term of this Agreement and for three (3) years thereafter, Berkeley Lab will have the right, upon ten (10) days prior written notice, to audit Licensee to ensure compliance with this Agreement, during normal business hours. Berkeley Lab may not request an audit more than once a calendar year unless an audit reveals an under reporting of fees due to Berkeley Lab, in which case, Berkeley Lab may not request an audit more than once per calendar quarter. If any audit reveals a shortfall, Licensee will promptly pay to Berkeley Lab such shortfall. If any audit reveals an overpayment, then Licensee will credit such overpayment against its next payment or fees to Berkeley Lab. If any audit reveals that fees due Berkeley Lab are more than five percent (5%) of amounts remitted to Berkeley Lab, Licensee will reimburse Berkeley Lab for its audit expenses for such audit.

14. **Notices.** All notices and demands under this Agreement will be given to the respective addresses as set forth in this Agreement and be deemed effective and properly given: (i) on the date of transmission if delivered via electronic mail, provided no automated bounce back message is received by the sender; (ii) upon confirmation by a recognized national overnight courier; or (iii) five (5) days after mailing if mailed by first-class or certified mail, postage paid. Either party may change the addresses set forth above by written notice to the other party.

15. **Use of Name.** In accordance with California Education Code Section 92000, Licensee will not use in advertising, publicity or other promotional activities any name, trade name, trademark, or other designation of the University of California, nor use "Ernest Orlando Lawrence Berkeley National Laboratory" or "Department of Energy" (including any contraction, abbreviation, or simulation of any of the foregoing) without Berkeley Lab's prior written consent.

16. **Change of Control & Assignment.** Licensee will promptly, and within 60 days, report to Berkeley Lab in writing any Change in Control of Licensee's

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17. GENERAL. The relationship created by this Agreement is one of independent contractors, and not partners or joint ventures. This Agreement, together with any Order Schedule and made a part hereof, constitute the complete and exclusive agreement between Berkeley Lab and Licensee with respect to its subject matter, and supersede all prior oral or written understandings, communications, or agreements. If any provision of the main body of the Agreement conflicts with a provision of any Order Schedule, then the terms of the Order Schedule will prevail. This Agreement will automatically terminate without an obligation to provide any notice if Licensee commences bankruptcy, reorganization, receivership, or insolvency proceedings (including without limitation bankruptcy protection under Chapter 7 and 11 of the U.S. Bankruptcy Code), or any other proceeding under any U.S. Federal, state, or other law for the relief of debtors. Any rule of construction to the effect that ambiguities are to be resolved against the drafting party will not apply in interpreting this Agreement. The rights and remedies of the parties under this Agreement are cumulative and not exclusive of any rights or remedies to which the parties are entitled by law. The exercise by either party of any

right or remedy under this Agreement or under applicable law will not preclude such party from exercising any other right or remedy under this Agreement or to which such party is entitled by law. This Agreement has been written in the English language. Licensee waives any rights Licensee may have under the law of Licensee's country to have this Agreement written in the language of that country. Licensee's rights and obligations under this Agreement will not be assignable without the prior written consent of Berkeley Lab and any attempt to assign them without that consent will be void. This Agreement will be governed by the laws of the State of California, excluding its rules governing conflicts of laws. If any action arises out of or relating to this Agreement, Licensee hereby consents to the exclusive jurisdiction of the state courts located in the City and County of Alameda, California, or if applicable, the federal courts located in the Northern District of California. No provision in either party's purchase orders or in any other business forms employed by either party will supersede the terms of this Agreement, and no modification or amendment of this Agreement is binding, unless in writing signed by a duly authorized representative of each party. This Agreement is binding upon and will inure to the benefit of Berkeley Lab, its successors and assigns. The waiver by either party of any breach of this Agreement by the other party will not waive subsequent defaults by such party of the same or a different kind. If any provision of this Agreement is held to be unenforceable for any reason, such provision will be reformed only to the extent necessary to make it enforceable, and such decision will not affect the enforceability of such provision under other circumstances, or of the remaining provision hereof.



Lawrence Berkeley
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ORDER SCHEDULE

This Order Schedule, is hereby incorporated and made part of the End User License Agreement (the “Agreement”).

1. **Software:** consists of Reconductoring Economic and Financial Analysis Tool (REFA), version 1.0, Berkeley Lab reference: < 2024-118 >, plus any derivative works therein (unless otherwise specified) plus any associated documentation, if provided, in the following format(s):

☒ Source Code

☒ Executable Code

2. Term: Twenty-five (25) years

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